AT-WILL EMPLOYMENT CONTRACT

This At-Will Employment Agreement (the "Agreement") is made and effective as of _____ (mm/dd/yyyy) by and between:

Employer: _____ (☐ Individual Name ☐ Business Name) having its principal place of business (address) at: _____ (the "Employer"), AND

Employee: _____ with a mailing address of _____ (the "Employee").

IN CONSIDERATION of promises and other good and valuable consideration the parties agree to the following:

1. **EMPLOYEE DUTIES**. The Employee agrees that they will act in accordance with this Agreement and with the best interests of the Employer in mind, which may or may not require them to present the best of their skills, experience, and talents to perform all the duties required of the position. In carrying out the duties and responsibilities of their position, the Employee agrees to adhere to any and all policies, procedures, rules, regulations, as administered by the Employer. In addition, the Employee agrees to abide by all local, county, State, and Federal laws while employed by the Employer.

2. **RESPONSIBILITIES**. The Employee shall be given the job title of: _____ (the "Position") which shall involve:

   The Employer may also assign duties to the Employee from time to time as deemed necessary by the Employer. The Employee shall be expected to work: (check one)

   ☐ Full-time
   ☐ Part-time

3. **EMPLOYEE BENEFITS**. During the employment period, the Employee shall be eligible to participate in benefits established by the Employer. These include:

   The aforementioned benefits may be changed at any time by the Employer.

4. **AT-WILL**. The Employer agrees to hire the Employee as "At-Will", which means this Agreement may be terminated at any time by either the Employee or Employer. After termination by either of the Parties, neither will have any obligation other than the non-disclosure of the Employer's proprietary information as outlined in Section 13 and any non-compete listed in Section 14.

   a) **Employee's Termination**. The Employee shall have the right to terminate this Agreement by providing at least _____ (#) days' notice. If the Employee should terminate this Agreement, the Employee ☐ SHALL ☐ SHALL NOT be entitled to severance, equal to their pay at the time of termination, for a period of _____.

   b) **Employer's Termination**. The Employer shall have the right to terminate this Agreement by providing at least _____ (#) days' notice. If the Employer should terminate this Agreement, the Employee ☐ SHALL ☐ SHALL NOT be entitled to severance, equal to their pay at the time of termination, for a period of _____.

5. **PAY**. As compensation for the services provided, the Employee shall be paid $_____ ☐ per hour ☐ salary on an annual basis (the "Compensation").

   The Compensation is a gross amount that is subject to all local, State, Federal, and any other taxes and deductions as prescribed by law. Payment shall be distributed to the Employee on a: (check one) ☐ weekly ☐ bi-weekly ☐ monthly ☐ quarterly ☐ annual basis.

   a) **Commissions**. In addition to the aforementioned Pay, the Employee shall be entitled to commissions that are to be paid every _____ and shall be calculated as follows:

   b) **Bonus**. The Employee shall be entitled to Bonuses on a _____ basis which is to be calculated as follows:

6. **OUT-OF-POCKET EXPENSES**. The Employer agrees to reimburse the Employee for any expenses that are incurred, including: (check all that apply)

   ☐ - Travel
   ☐ - Food
   ☐ - Lodging
   ☐ - Other: _____.

7. **OWNERSHIP INTEREST**. This Agreement ☐ SHALL NOT ☐ *SHALL include partial ownership in the business operations of the Employer.

   *If such ownership is offered, the details shall be stated in an attached Exhibit.

8. **TRIAL PERIOD**. Other than certain benefits prescribed by law, the Employee will not be eligible for benefits, vacation time, or personal leave until after the first _____ (#) days of employment (the "Trial Period"). In addition, the Employee will not be eligible for vacation time, sick leave, or any time off that would be paid or unpaid.

9. **VACATION TIME**. After the Trial Period is complete, the Employee is entitled to _____ (#) days off per year. It is required for the Employee to give notice before scheduling their vacation in accordance with company policy.

   Any unused vacation time shall be (check one):

   ☐ - Converted to cash at the end of the year at a rate of $_____ per day.
   ☐ - Eligible to rollover up to _____ (#) days to the next year.
   ☐ - Forfeited at the end of the year.
   ☐ - Other: _____.

10. **PERSONAL LEAVE**. After the Trial Period, the Employee shall be eligible for _____ (#) days of ☐ paid ☐ unpaid time off per year for personal or medical issues.

    Any unused personal leave shall be: (check one)

    ☐ - Converted to cash at the end of the year at a rate of $_____ per day.
    ☐ - Eligible to rollover up to _____ (#) days to the next year.
    ☐ - Forfeited at the end of the year.
    ☐ - Other: _____.

    If for any reason the Employee depletes their allotted number of days of personal leave in a given year, the Employee ☐ MAY ☐ MAY NOT be able to use any remaining vacation time.

11. **FEDERAL HOLIDAYS**. The Employee shall be entitled to _____ (#) federal holidays per calendar year. This is subject to change by the Employer from time to time. If for any reason the Employee should request a federal holiday off, the Employer shall determine if the Employee may do so and if it shall be taken from either the Employee's personal leave or vacation time. Federal holidays are determined by the Employer and may change every calendar year.

12. **DISABILITY**. If for any reason the Employee cannot perform their duties, by physical or mental disability, the Employer may terminate this Agreement by giving the Employee _____ (#) days' written notice.

13. **CONFIDENTIALITY**. The Employee understands and agrees to keep any and all information confidential regarding the business plans, inventions, designs, products, services, processes, trade secrets, copyrights, trademarks, customer information, customer lists, prices, analytics data, costs, affairs, and any other information that could be considered proprietary to the Employer (the "Confidential Information"). The Employee understands that disclosure of any such Confidential Information, either directly or indirectly, shall result in litigation with the Employer eligible for equitable relief to the furthest extent of the law including, but not limited to, filing claims for losses and/or damages. In addition, if it is found that the Employee divulged Confidential Information to a third (3rd) party, the Employer shall be entitled any and all reimbursement for their legal and attorney's fees.

    a) **Post Termination**. After the Employee has terminated their employment with the Employer, the Employee shall be bound to Section 13 of this Agreement for a period of _____ ☐ Months ☐ Years (the "Confidentiality Term"). If the Confidentiality Term is beyond any limit set by local, State, or Federal laws, then the Confidentiality Term shall be the maximum allowed legal time-frame.

14. **NON-COMPETE**. (check one)

    ☐ - There shall be **NO Non-Compete** established in this Agreement.

    ☐ - During the term of employment, the Employee understands that he or she will be subject to learning proprietary information, including trade secrets, which could be applied to competitors of the employer. Therefore, in order to protect the fiduciary interests of the Employer, the Employee agrees to: (check all that apply)

        ☐ - Withhold from working in the following industry(ies) / area(s): _____.

        ☐ - Withhold from working for the following employer(s): _____.

        ☐ - Other: _____.

    This Non-Compete shall be in effect for _____ ☐ Months ☐ Years following the date of Employee's termination.

    The jurisdiction of this Non-Compete shall cover the area(s) of: _____.